

ORDER SHEET

**LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Case No. Crl. Revision No.59756 of 2021

Khawaja Aqeel Rasheed Butt Versus CCPO, Lahore & others

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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30.09.2021	Mr. Aazar Latif Khan, Advocate for the petitioner. Mr. Irfan Zia, Deputy Prosecutor General. Mr. Fayyaz Ahmad Basra, Assistant Advocate General.
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The petitioner through this criminal revision has come up to this Court challenging the legality and validity of the order dated 10.06.2021 passed by the learned Judicial Magistrate 1st Class, District Courts, Lahore, upon a ‘*Qalandra*’ moved by the Station House Officer, Police Station Mustafa Town, District Lahore, under Sections 110 & 55 of the Code of Criminal Procedure, 1898, against the present petitioner.

2. At the very outset, when asked about the maintainability of this petition for revision, learned counsel for the petitioner has argued that Sindh High Court in the cases Mazan alias Mazno v. The State (PLD 1975 Karachi 1035), Ali Sher v. S. D. M. Meerpur Mathelo and Another (1982 PCrLJ 750) and Sajjan v. The State (1984 PCrLJ 1276) and in some other cases directly entertained the criminal revision in similar cases.

3. I have heard the learned counsel for the petitioner as well as learned Prosecutor and the learned Law Officer present in Court (on Court’s call).

4. Legal status of the order under challenge being a judicial one is an admitted proposition which finds strength from the case reported as Crown v. Syed Abid Shah (1947 Law Reports 322). With all reverence to the cases of Sindh High Court I have observed that the Hon'ble Judges in Sindh High Court have not discussed any justification for directly filing of and entertaining thereof, a criminal revision against an order passed by the learned Magistrate against such a proposition without availing remedy before the learned Sessions Judge. Section 439 of the Code of Criminal Procedure, 1898, candidly provides concurrent jurisdiction to the High Court but at the same time it does not mean that without any plausible justification, a party being aggrieved by an order of the learned Magistrate who is inferior to the Sessions Judge as provided in explanation of Section 435 of the Code *ibid*, can directly approach the High Court as a parallel option available to him. I am of the opinion that such practice, if allowed, is likely to frustrate the wisdom behind the legislation of Section 439-A of the Code of Criminal Procedure, 1898, by virtue of which revisional powers have been devolved to the Sessions Judges and the scheme of dispensation of justice at doorstep. Dealing with such proposition, Sindh High Court has recently passed judgments in the cases Mohsin Abbas v. Qadir Khan Mandokhail and 6 others reported as (PLD 2020 Sindh 94), Kazim Raza Abidi Advocate and 4 others v. XVIIIITH Judicial Magistrate and another reported as (PLD 2020 Sindh 748), Mst. Naghma Imran v. The State and 6 others reported as (PLD 2020 Sindh 717) and Hakim Ali v. The State reported as (2019 P Cr. L J

418). In consideration of all mentioned supra, this criminal revision is not entertainable before this Court, hence is disposed of. However, office is directed to transmit the same along with all annexures to the learned Sessions Judge, Lahore, for its decision on merit. This matter shall be listed in the cause list of learned Sessions Judge, Lahore, on 06.10.2021.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

Nazir